

25CHCV00893 25CHCV00893

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-08-19

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Case Number: 25CHCV00893 Hearing Date: August 19, 2026 Dept: F47

Dept. F47

Date: 8/19/26

Case #25CHCV00893

MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on 6/29/26.

MOVING ATTORNEY: Nathan Mubasher

CLIENTS: Defendants Gabriel O. Castillo and Best Choice

Hospice Service, Inc.

RESPONDING PARTY: Plaintiff David Kreuz

RELIEF REQUESTED: An order relieving Nathan

Mubasher as counsel for Defendants Gabriel O. Castillo and Best Choice Hospice

Service, Inc.

RULING: The motion is denied without

prejudice.

On 6/29/26, attorney Nathan Mubasher filed the instant

motion seeking an order relieving him as counsel for Defendants Gabriel O.

Castillo and Best Choice Hospice Service, Inc.

On the same date, attorney Mubasher filed a proof of service which indicates that on 6/29/26, the motion was electronically served on counsel for Plaintiff David Kreuz. On 8/6/26, Plaintiff David Kreuz (Plaintiff) filed and served an opposition to the motion. On 8/12/26, attorney Mubasher filed and served a reply to the opposition.

The proof of service attached to the reply also indicates that it was electronically served only on counsel for Plaintiff.

All documents in support of a motion to be relieved as counsel must be served on the client and on all other parties who have appeared in the case. See CRC

3.1362(d). Here, attorney Mubasher has not filed a proof of service showing that the motion papers were served on the clients. Additionally, No. 4.b. in the notice of motion, reflecting that one of the clients is a corporation, is not marked. Further, No.6 in the proposed order does not set forth all of the necessary information for the clients. Instead, it refers to the notice of motion and an attachment thereto. All of the contact information for the clients must be set forth in the proposed order or an attachment to the order itself.

While the foregoing procedural defects require that the motion be denied without prejudice, the opposition does not set forth any viable basis to deny the motion on the merits.

The authority cited in the opposition addresses the denial of motions to be relieved as counsel when such would prejudice the client, not the adverse party. See Ramirez (1994)

21 CA4th 904, 915; Flake (2017) 9 CA5th 223, 230. The fact that a corporation will be left without counsel, and therefore cannot appear before the court, does not prevent the granting of a motion to be relieved as counsel. See Gamet (2001) 91 CA4th 1276, 1284 fn.5.

Attorney Mubasher's Request for Judicial Notice is denied. While records of another court are subject to judicial notice. The ruling of another trial court in a similar, but unrelated case, has no bearing on the Court's rulings in this case.